PURPOSE CAPITAL

APPENDIX “CONDITIONS PRECEDENT” TO CONTRACT TEMPLATE PC-CTR-002 · CHECKLIST

Ref. **PC-CTR-002-A2**
Version 0.9
Internal

Conditions precedent and closing documents

Completed by Head of Capital Markets; checked by the RCCI **Frequency** Monitored until the Settlement Date

Kept by Transaction file

All conditions must be fulfilled no later than [Long-Stop Date for fulfilment of the conditions precedent] and continue to be met until settlement on [Settlement Date]. Any waiver by the Underwriter is made in writing and signed by the Chief Executive Officer.

No.	Condition or document	Provided by	Received on	Comments
1	COSUMAF approval (visa) of the Information Memorandum and, where applicable, of each supplementary note	COSUMAF		
2	Minutes of the corporate bodies authorising the issue and the delegations of authority	Issuer		
3	Up-to-date articles of association and RCCM extract less than three months old	Issuer		
4	Legal opinion of the Issuer's counsel on the Issuer's capacity, the validity of the issue and the absence of conflict with its commitments	Legal counsel		
5	Statutory auditors' certificate on the financial information in the Information Memorandum (comfort letter)	Statutory auditors		
6	Instruments creating the guarantees and security for the loan, where applicable	Issuer, guarantor		
7	Approval of the Central Securities Depository for admission of the Securities to its system, and ISIN codes	Central Securities Depository		
8	Issuer's certificate on the Settlement Date (Appendix “Issuer's certificate”)	Issuer		
9	Absence of any Material Adverse Event and Market Event: review of the press and of BVMAC and COSUMAF announcements on the day before settlement	Underwriter		
10	Payment of the sums due under the Mandate Agreement	Issuer		
11	Approval of the Board of Directors of Purpose Capital if the commitment exceeds 25% of its own funds	Underwriter		

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SATISFACTION OF CONDITIONS

☐ All conditions are fulfilled ☐ Written waiver of conditions No. _____ ☐ Agreement lapsed

HEAD OF CAPITAL MARKETS · DATE

_____

CHIEF EXECUTIVE OFFICER · DATE

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